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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF GERARDO SERRATO'S JOINDER AND DEMURRER

Date: October 16, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna M. Whitman
Trial Date: None Set
Action Filed: May 29, 2026

Reservation Number: 487924635411

MEMORANDUM OF POINTS AND AUTHORITIES

Respondent Gerardo Serrato ("Capt. Serrato") joins in Respondent California Highway Patrol's ("CHP") Demurrer to the Petition for Writ of Mandate as to all causes of action in the petition on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10, subd. (e).)

Specifically, CHP demurs to the Petition for these reasons: (1) CHP possesses no ministerial duty to certify Petitioner's Form I-918, Supplement B, U Nonimmigrant Status Certification ("Form B") (*see* CHP's Demurrer at 11-13); (2) Petitioner has no clear, present and beneficial right to the performance of a ministerial duty (*see* CHP's Demurrer at 13-15); (3) CHP has no ministerial duty to provide a written explanation for its certification denial in the form demanded by Petitioner (*see* CHP Demurrer at 15-16); (4) the rebuttable presumption of helpfulness is not applicable on the facts alleged (*see* CHP's Demurrer at 16-17); and (5) Petitioner is not entitled to his requested declaratory relief because he seeks advisory opinions on purely legal questions, declaratory relief cannot unwind a past administrative decision, and because Petitioner is not entitled to a writ of ordinary mandate, mooting the declaration Petitioner seeks (*see* CHP's Demurrer at 17-20).

These reasons are relevant to Capt. Serrato's defenses and demurrer because the basis for Petitioner's requested relief, as articulated in his petition, is the same as to all Respondents, including the individual Respondents. Further, the relief sought by CHP would benefit Capt. Serrato, as Petitioner alleges that Capt. Serrato is a "certifying official" within the meaning of Penal Code section 679.10(b) and has attached to his petition the certification denial letter signed by Capt. Serrato. For these reasons, Capt. Serrato joins CHP's demurrer to the Petition for Writ of Mandate as to all causes of action in the petition, and adopts the points and authorities filed in support of CHP's Demurrer.

Capt. Serrato therefore respectfully requests that the Court sustain his demurrer without leave to amend.

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Dated: July 30, 2026

Respectfully submitted,

ROB BONTA
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MARK R. BECKINGTON
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/s/ *Vanessa Ing*
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